

AGNIFILO INTRATER

December 9, 2025

The Honorable Gregory Carro
Supreme Court of the State of New York
100 Centre Street – Part 32
New York, NY 10013

Re: *People v. Luigi Mangione*, Ind. No. 75657/2024

Dear Judge Carro:

On Tuesday, December 2, 2025, counsel made an oral application in Court to seal body-worn camera footage that was admitted as exhibits at the hearing and displayed in open court. Counsel argued that providing this footage to the media—which contains evidence and statements that are subject to suppression—creates a substantial probability that Mr. Mangione’s right to a fair trial will be prejudiced if potential jurors see this footage in the media. Counsel further noted that this serious prejudice would apply not only to the alleged murder charges pending before this Court, but also to the concurrent federal case where the government is seeking the death penalty. After hearing counsel’s application, this Court ruled that the body-worn camera footage exhibits that were played in court would be sealed and not provided to the media.

In making this sealing request, counsel relied on *Daily News, LP v. Wiley*, 126 A.D.3d 511 (1st Dep’t 2015), where the media requested the defendant’s videotaped confession in the Eitan Patz case that was subject to a suppression hearing. In denying the media’s request, Judge Wiley found that the proper balance between a defendant’s right to a fair trial and the media’s First Amendment rights was to allow the confession to be played in a public courtroom in front of the media but to not provide a copy of the videoed confession to the media.

In reviewing Judge Wiley’s ruling, the First Department noted that “[d]ecisions to seal or disclose records fall within the inherent power of the court to control the records of its own proceeding.” *Id.* at 512. The First Department further noted that “[w]hile a court must guarantee that the defendant receives a fair trial, it must do so in a manner that balances the interests of ‘the defendant, jurors, witnesses, attorneys and the public at large.’” *Id.* Relying on precedent from the NY Court of Appeals, the First Department noted that the “defendant must demonstrate ‘a strong likelihood’ that particular evidence would prejudice the defendant’s trial if disclosed to potential jurors.” *Id.* (citing *Matter of Westchester Rockland Newspapers v. Leggett*, 48 N.Y.2d 430, 438 (1979)). In addition, the First Department noted that the “defendant bears the burden of showing that his or her right to a fair trial may be compromised by an open proceeding,” and that the “trial court must make ‘specific findings’ that closure would prevent a substantial probability that the defendant’s right to a fair trial would be prejudiced by publicity and that there are no reasonable alternatives to closure to protect the defendant’s fair trial rights.” *Wiley*, 126 A.D.3d at 513.

After balancing the media’s First Amendment rights and a defendant’s right to a fair trial, the First Department upheld Judge Wiley’s ruling that the media has “not established a clear right

to the relief they seek.” *Id.* In doing so, the court noted that the suppression hearing “was held in open court, with the press in attendance. *Id.* Furthermore, the First Department noted that Judge Wiley had not yet ruled on the admissibility of the videotaped confession, that the redacted version of the confession was played at trial and that the redacted version was released to the media after trial. Under those circumstances, the First Department found no clear error in Judge Wiley’s ruling.

The *Wiley* analysis applies here as well. The body-worn camera footage at issue was admitted at trial and played in open court in front of the media. Just as in *Wiley*, allowing the media access to the body-worn camera footage would create a substantial probability that Mr. Mangione’s fair trial rights would be prejudiced by the publicity. After all, the prosecution is seeking to admit Mr. Mangione’s statements in the body-camera footage at trial because the DA’s Office believes these statements can be used to establish Mr. Mangione’s guilt. Similarly, the body-worn camera footage depicts the search of Mr. Mangione’s backpack, which is the subject of the hearing. The prosecution is seeking to use the evidence recovered from the backpack (including a gun, a silencer and Mr. Mangione’s writings) to prove Mr. Mangione’s guilt. As such, providing the body-worn camera footage to the media to be repeatedly played before Mr. Mangione’s state and federal trials creates a substantial probability that Mr. Mangione’s right to a fair trial will be prejudiced by potential jurors seeing this footage in the media.

In response to Mr. Mangione’s application, an attorney representing several media outlets filed a letter with this Court seeking (1) a meaningful opportunity to be heard before any sealing or closure decision; and (2) that the Court should reconsider its decision to seal the body-worn camera footage. Counsel agrees with the media first request but continues to object to the release of the body-worn camera footage. The media’s request cites the Second Circuit’s decision in *Application of Nat’l Broad. Co., Inc.*, 635 F.2d 945 (2d Cir. 1980) (“NBC case”) to support its claim that “the body worn camera footage should be unsealed since they were disclosed to the public and press in open court.” (Balin 12/5/25 Letter at 5.) That case, however, is readily distinguishable. There, the media sought to copy and televise all videotapes admitted into evidence at one of the first Abscam cases pending in the Eastern District of New York. In finding that the trial court properly sided with the media in releasing the videotapes, the Second Circuit relied on the fact that the videotape evidence showed “the actions of public officials, both the defendants and law enforcement personnel,” and that, though the videotape transcripts had been provided to the public, “there remains a legitimate and important interest in affording members of the public their own opportunity to see and hear evidence that records the activities of a Member of Congress and local elected officials, as well as agents of the Federal Bureau of Investigation.” 635 F.2d at 952. Here, in contrast, Mr. Mangione’s alleged conduct does not implicate politicians or the FBI.

Moreover, as the media in the NBC case was seeking evidence that had been admitted at trial—after the jury had been selected—there was no concern that releasing the evidence would prejudice the trial defendants’ right to a fair trial. Here, on the other hand, the media is requesting evidence from a suppression hearing, before a jury has been selected. In this scenario, releasing this evidence to the media would create a substantial probability that Mr. Mangione’s right to a fair trial would be prejudiced by publicity.

Notably, the Second Circuit addressed the potential prejudice that releasing the videotapes to the media would have on the other Abscam defendants who were still awaiting trial. While

acknowledging the potential for prejudice to these defendants, the Second Circuit nevertheless noted that the defendants and the media “frequently overestimate the extent of the public’s awareness of the news. *Id.* at 953. Specifically, the Second Circuit noted that “despite the extensive publicity about Abscam that unfortunately accompanied the initial revelations and that was legitimately renewed when the indictments were returned, about half of those summoned for jury selection had no knowledge of Abscam, and only a handful had more than cursory knowledge.” *Id.* Needless to say, the same is not true here, as the public attention to this case is unprecedented. (See, e.g., Balin 12/5/25 Letter at 1 n.1 (citing five news articles—including articles in CNN, BBC, ABC News, the NY Times and Bloomberg—describing the second day of the suppression hearings in this case.) Given the extreme media coverage of this case, releasing the body-worn camera footage in this case would create a substantial probability that Mr. Mangione’s right to a fair trial would be prejudiced.

Lastly, the media claims that “there are less restrictive alternatives to sealing the exhibits, including the implementation of a careful voir dire process at the time of trial and the use of clear jury instructions.” (*Id.* at 5.) As Judge Jack Weinstein noted in *In re NBC Universal, Inc.*, such measures are inadequate to prevent prejudice:

Voir dire would be an insufficient cure if a large segment of the citizens in this district are exposed to the prejudicial information; exclusion of a considerable portion of the population would skew the panel, making it more difficult to find a cross-section of the community. Jurors’ assurances that they have not been influenced by media reports are not necessarily dispositive.

426 F. Supp. 2d 49, 58 (E.D.N.Y. 2006). This Court should find the same. Accordingly, this Court should not reconsider its ruling sealing the body-worn camera footage.

Respectfully submitted,



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